

Smt. Suryamarathi Bhagyalaxmi vs The State Of Telangana on 1 May, 2024

THE HON'BLE SRI JUSTICE PULLA KARTHIK

WRIT PETITION Nos.885 and 20996 of 2023

COMMON ORDER:

Since the lis in both these writ petitions is inter-connected, they are taken up for disposal by way of this common order.

2. W.P.No.885 of 2023 is filed seeking the following relief:

"...to issue an appropriate writ, order or direction more particularly one in the nature of Writ of Mandamus, declaring the Memo No.DEE/OP/NZB/JAO/ADM/E2/D. No.3635/20 dated 25.03.2021 passed by the 4th Respondent as illegal is arbitrary, illegal, and without jurisdiction and contrary to law and set aside the same and consequently direct the Respondents to provide employment to the Petition No.1 on compassionate grounds forthwith and pass..."

3. W.P.No.20996 of 2023 is filed seeking the following relief:

"...to issue an appropriate writ, order or direction more particularly one in the nature of Writ of Mandamus, declaring the proceedings No.Lr. No.DEE/Op/Nzb/JAO/Adm/E2/ D.No.979/2023, dated 25.07.2023 issued by the 4th Respondent in rejecting the representation of the Petitioners for not paying the death/ terminal benefits of late Shyam Rao, as illegal is arbitrary, illegal, in violation of principles of natural justice and without any reasons and contrary to the order passed in WP No.15432 of 2023 dated 27.06.2023 and consequently direct the Respondents to pay death/ terminal benefits such as Employee Welfare Fund, Leave Encashment, Gratuity and sanction Pension to the Petitioners with interest @ 18% per annum and pass..."

4. Heard Sri N.Praveen Reddy, learned Counsel appearing for the petitioners, learned Government Pleader for Services appearing on behalf of respondent No.1 and Sri Zakir Ali Danish, learned Standing Counsel for Telangana State Northern Power Distribution Corporation Limited, appearing for respondent Nos.2 to 4.

PK,J W.P.Nos.885 & 20996 of 2023

5. For the purpose of convenience, firstly, W.P.No.885 of 2023 is taken up for adjudication.

6. Learned counsel appearing for the petitioners submits that petitioner No.1 is the son and petitioner No.2 is the wife of late Shyam Rao, who died on 24.06.2016 while in service. After his demise, petitioner No.1 made an application to the respondents on 08.02.2016 seeking to provide compassionate appointment, duly enclosing all the relevant documents, but the same was kept pending. Thereafter, he made several representations to the respondents requesting to consider his application for providing compassionate appointment. However, only after a lapse of five years, respondent No.4 passed the impugned order in Memo No.DEE/OP/NZB/JAO/ADM/E2/D.No.3635/20, dated 25.03.2021, rejecting his case for appointment on compassionate ground, arbitrarily. He further submits that the impugned rejection order was passed mainly on the ground that the petitioner's mother (petitioner No.2 herein) is the second wife of late Shyam Rao, and as per clause (xxi) of Regulation (4) of APSEB, Employees Revised Conduct Regulations, as adopted by TSTRANSCO/TSNPDCL, petitioner No.1 is ineligible for employment on compassionate grounds. Learned counsel further contends that the primary requirement for being considered for employment on compassionate grounds is that the employee should have died in harness, and as the earning member is no more, his/her PK,J W.P.Nos.885 & 20996 of 2023 family should not be left in distress, and that the compassionate appointment should provide some sustenance to the deceased family.

7. He further contends that at no point of time, respondents had raised the issue of second marriage of late Shyam Rao with the petitioner No.2 (mother of petitioner No.1), though she was married to late Shyam Rao way back in 1995. Petitioner No.1 was born out of their wedlock on 14.02.1997, and the petitioner No.2 herein was also shown as a nominee for the benefits of late Shyam Rao. He further submits that the respondents have also paid General Provident Fund on 02.03.2017 to petitioner No.2 being the wife of late Shyam Rao. Therefore, the respondents are estopped from taking plea that on account of second marriage of the first petitioner's late father petitioner No.1 was declared ineligible for being provided employment on compassionate grounds. Learned counsel further contends that the petitioners herein are the only family members of late Shyam Rao, and petitioner No.1 is eligible for the appointment under compassionate grounds since they are in distress, having no source of income and deprived of penionsary benefits and compassionate appointment. He further submits that petitioner No.2 married to Mr. Shyam Rao in 1995 i.e., after his divorce with his first wife on 06.08.1994. As such, the marriage of petitioner No.2 was performed legally only after dissolution of the late Shyam Rao's first marriage as per customary divorce. He further submits that the Tahsildar, after due verification, has issued a PK,J W.P.Nos.885 & 20996 of 2023 family member certificate on 21.09.2016 showing the petitioners herein as the only family members of Late Shyam Rao. Therefore, the allegation of the respondents that the son of late Shyam Rao, who was born out of wedlock with the first wife, is already employed in Telangana State Northern Power Distribution Company Limited (TSNPDCL), and the petitioners cannot claim compassionate appointment is misconceived, as the respondents cannot add new ground to support the order of rejecting the claim for compassionate appointment. Therefore, the action of the respondents in rejecting the claim of petitioner No.1 for providing employment on compassionate grounds is illegal and arbitrary. In support of his contentions, learned counsel relied on the judgment of the Hon'ble Apex Court in Mukesh Kumar v. Union of India 1.

8. Per contra, learned Standing Counsel appearing for respondents submits that the names of the petitioners herein are nowhere mentioned in the service records of late Shyam Rao. As per his Service Book, the deceased employee Shyam Rao had availed L.T.C. during the block period of 2007-08 for the period from 18.12.2008 to 21.12.2008, for travelling from Nizamabad to Thirumala Thirupathi Devasthanam, with the list of persons which stated, "1) Self-38 yrs, 2) wife-34 yrs, 3) elder son-18 yrs, 4) younger son-13 yrs". Now, the petitioners have submitted the Family Members certificate vide TSOBB 0658604, dated 1 (2022) 14 SCC 161 PK,J W.P.Nos.885 & 20996 of 2023 21.09.2016, which shows that Surya Marathi Saikumar and Surya Marathi Bhagyalaxmi (petitioners herein) are the family members, but they are not covered under the L.T.C. availed by the deceased employee. Moreover, the deceased employee also did not submit the family member details during his service. Learned Standing Counsel further submits that The BPMS 119 of the respondent Board dated 10.02.1982 states that a family member of the employee who died in service is entitled for appointment on compassionate grounds, subject to fulfilment of specific conditions. One of the conditions is that there shall not be any earning member in the family of the deceased employee. He further submits that the petitioners herein failed to produce any records which indicate their employment status. As per the information available with the department, the elder son of late Shyam Rao, who was born out of wedlock with late Smt. Laxmi, and is named S.M. Ravi, is an employee of Telangana State Northern Power Distribution Company Limited (TSNPDCL) and is working as Lineman at Operation Division/ Bodhan. Hence, the claim of the petitioners that there are no earning members in the family, is not valid.

9. He further submits that the petitioners herein failed to produce any evidence of divorce between late Shyam Rao and his first wife late Smt. Laxmi. As such, as on the date of death of late Shyam Rao, one of the family members was an earning member and he is indeed working in TSNPDCL. Moreover, petitioner No. 2 is the second wife of PK,J W.P.Nos.885 & 20996 of 2023 the late Shyam Rao, and as on the date of late Shyam Rao's death, the first wife was surviving. Thus, petitioner No.1 is not entitled to compassionate appointment. Hence, learned Standing Counsel prays to Court to dismiss the present writ petition.

10. This Court has taken note of the submissions made by the respective parties and perused the material available on record.

11. A perusal of the record discloses that petitioner No.1's father passed away on 24.06.2016, while he was in service. Thereafter, petitioner No.1 submitted an application for employment on compassionate grounds on 08.12.2016, duly enclosing copies of all the necessary documents, including education details and the Family Member Certificate dated 21.09.2016. However, the respondent authorities rejected the petitioner's application vide impugned order dated 25.03.2021, stating that he is not eligible for compassionate appointment as per clause (xxi) of Reg.(4) of Telangana TRANSCO/TSNPDCL Employees Revised Conduct Regulations. As per the said clause, "No employee shall contract another marriage notwithstanding that the subsequent marriage is permissible under personal law."

12. The record further reveals that late Shyam Rao's first son, who was born out of wedlock with the first wife, had been working as a Lineman in the respondent Corporation since 2011, during his

father's PK,J W.P.Nos.885 & 20996 of 2023 lifetime. According to the petitioners, petitioner No.2 herein married Shyam Rao in 1995, after he divorced his first wife on 06.08.1994. Subsequently, late Shyam Rao and petitioner No.2 herein started living together, and they were blessed with one son (petitioner No.1 herein) on 14.02.1997. Hence, it can be construed that the petitioners herein were dependant on late Shyam Rao. The record further reveals that the respondents have also paid the General Provident Fund amount to her on 02.03.2017, as the wife of late Shyam Rao. Therefore, the contention of the respondents that Mr. S.M. Ravi S/o. late Shyam Rao from his first marriage, is already employed in TSNPDCL, and therefore, the case of petitioner No.1 for compassionate appointment cannot be considered is untenable, for the reason that the family of the petitioners herein constitutes a separate family.

13. A perusal of the impugned order dated 25.03.2021 reveals that respondent No.3 rejected the claim of petitioner No.1 for appointment on compassionate grounds, on the following ground:

" ...it was informed that Sri Surya Marati Sai Kumar S/o.Late Shyam Rao, Ex.ALM (Expired on 24.06.2016) is not eligible for employment on compassionate grounds as per clause (xxi) of Reg.(4) of APSEB, Employees Revised Conduct Regulations as adopted by TSTRANSCO/TSNPDCL., which specify that "No employee shall contract another marriage notwithstanding that the subsequent marriage is permissible under law" and he did not fulfil the eligibility criteria for consideration of his candidature for employment on compassionate grounds...."

PK,J W.P.Nos.885 & 20996 of 2023 But in the present writ petition, the respondents have specifically contended that the elder son of late Shyam Rao, who was born out of the wedlock with his first wife, is already an employee of the respondent Corporation, which cannot be looked into for the reason that the said ground is nowhere reflected in the impugned order dated 25.03.2021. The respondents cannot add or subtract anything additional to the reasons assigned in the impugned rejection order, in view of the ratio laid down by the Hon'ble Apex Court in *Mohinder Gill v. Chief Election Commissioner 2*, wherein, it is held that, "when a statutory functionary makes an order based on certain grounds, its validity must be judged by the reasons so mentioned and cannot be supplemented by fresh reasons in the shape of affidavit or otherwise. Otherwise, an order bad in the beginning may, by the time it comes to Court on account of a challenge, get validated by additional grounds later brought out". In view of the same, the contention urged by the respondents cannot be sustained.

14. For better appreciation of the case on hand, it is relevant to refer the proposition of law laid down by the Hon'ble Apex Court in *Mukesh Kumar's case (supra)*, wherein, at para Nos.6, 7, 8, 9 and 10, it is held as under:

6. It is true that the matter is no more *res integra*. This Court in *V.R. Tripathi [Union of India v. V.R. Tripathi, (2019) 14 SCC 646 : (2020) 1 SCC (Civ) 768 : (2020) 2 SCC (L&S) 301]* considered the very same policy and circular that arise for the consideration in the present case. The 2 (1978) 1 SCC 405 PK,J W.P.Nos.885 & 20996 of 2023 judgment covers the issue, as is evident from the following passages :

(SCC pp. 652-54, paras 14 & 16-18) "14. The real issue in the present case, however, is whether the condition which has been imposed by the circular of the Railway Board under which compassionate appointment cannot be granted to the children born from a second marriage of a deceased employee (except where the marriage was permitted by the administration taking into account Personal law, etc.) accords with basic notions of fairness and equal treatment, so as to be consistent with Article 14 of the Constitution. ...

16. The issue essentially is whether it is open to an employer, who is amenable to Part III of the Constitution to deny the benefit of compassionate appointment which is available to other legitimate children. Undoubtedly, while designing a policy of compassionate appointment, the State can prescribe the terms on which it can be granted. However, it is not open to the State, while making the scheme or rules, to lay down a condition which is inconsistent with Article 14 of the Constitution. The purpose of compassionate appointment is to prevent destitution and penury in the family of a deceased employee. The effect of the circular is that irrespective of the destitution which a child born from a second marriage of a deceased employee may face, compassionate appointment is to be refused unless the second marriage was contracted with the permission of the administration. Once Section 16 of the Hindu Marriage Act, 1955 regards a child born from a marriage entered into while the earlier marriage is subsisting to be legitimate, it would not be open to the State, consistent with Article 14 to exclude such a child from seeking the benefit of compassionate appointment. Such a condition of exclusion is arbitrary and ultra vires.

17. Even if the narrow classification test is adopted, the circular of the Railway Board creates two categories between one class of legitimate children. Though the law has regarded a child born from a second marriage as legitimate, a child born from the first marriage of a deceased employee is alone made entitled to the benefit of compassionate appointment. The salutary purpose underlying the grant of compassionate appointment, which is to prevent destitution and penury in the family of a deceased employee requires that any stipulation or condition which is imposed must have or bear a reasonable nexus to the object which is sought to be achieved. The learned Additional Solicitor General has urged that it is open to the State, as part of its policy of discouraging bigamy to restrict the benefit of compassionate appointment, only to the spouse and children of the first marriage and to deny it to the spouse of a subsequent marriage and the children. We are here concerned with the exclusion of children born from a second marriage. By excluding a class of beneficiaries who have been deemed legitimate by the operation of law, the condition imposed is disproportionate to the object sought to be achieved. Having regard to the purpose and object of a scheme of compassionate appointment, once the law has treated such children as legitimate, it would be impermissible to exclude them from being considered for compassionate appointment.

Children do not choose their parents. To deny compassionate appointment though the law treats a child of a void marriage as PK,J W.P.Nos.885 & 20996 of 2023 legitimate is deeply offensive to their dignity and is offensive to the constitutional guarantee against discrimination.

18. ... The exclusion of one class of legitimate children from seeking compassionate appointment merely on the ground that the mother of the applicant was a plural wife of the deceased employee would fail to meet the test of a reasonable nexus with the object sought to be achieved. It would be offensive to and defeat the whole object of ensuring the dignity of the family of a deceased employee who has died in harness. It brings about unconstitutional discrimination between one class of legitimate beneficiaries -- legitimate children."

7. This Court in V.R. Tripathi [Union of India v. V.R. Tripathi, (2019) 14 SCC 646 : (2020) 1 SCC (Civ) 768 : (2020) 2 SCC (L&S) 301] held that the scheme and the rules of compassionate appointment cannot violate the mandate of Article 14 of the Constitution. Once Section 16 of the Hindu Marriage Act regards a child born from a marriage entered into while the earlier marriage is subsisting to be legitimate, it would violate Article 14 if the policy or rule excludes such a child from seeking the benefit of compassionate appointment. The circular creates two categories between one class, and it has no nexus to the objects sought to be achieved. Once the law has deemed them legitimate, it would be impermissible to exclude them from being considered under the policy. Exclusion of one class of legitimate children would fail to meet the test of nexus with the object, and it would defeat the purpose of ensuring the dignity of the family of the deceased employee. This judgment in V.R. Tripathi [Union of India v. V.R. Tripathi, (2019) 14 SCC 646 : (2020) 1 SCC (Civ) 768 : (2020) 2 SCC (L&S) 301] has now been followed by a number of High Courts as well [See K. Santhosha v. Karnataka Power Transmission Corpn. Ltd., 2021 SCC OnLine Kar 12989 : (2022) 1 Kant LJ 154 (decided on 24-6-2021 by the High Court of Karnataka); Yuvraj Dajee Khadake v. Union of India, 2019 SCC OnLine Bom 299 (decided on 21-2-2019 by the High Court of Bombay); Union of India v. Rohit Chand, 2020 SCC OnLine Del 157 (decided on 24-1-2020 by the High Court of Delhi).] .

8. Apart from the discrimination ensuing from treating equals unequally, which is writ large as demonstrated in the judgment of this Court referred to above, there is also discrimination on the ground of descent, which is expressly prohibited under Article 16(2). In V. Sivamurthy v. State of A.P. [V. Sivamurthy v. State of A.P., (2008) 13 SCC 730 : (2009) 1 SCC (L&S) 335 : (SCC pp. 741-42, para

18)"18*. The principles relating to compassionate appointments may be summarised thus;(a) Compassionate appointment based only on descent is impermissible. Appointments in public service should be made strictly on the basis of open invitation of applications and comparative merit, having regard to Articles 14 and 16 of the Constitution of India. Though no other mode of appointment is permissible, appointments on compassionate grounds are a well- recognised exception to the said general rule, carved out in the PK,J W.P.Nos.885 & 20996 of 2023 interest of justice to meet certain contingencies.(b) Two well- recognised contingencies which are carved out as exceptions to the general rule are:(i) appointment on compassionate grounds to meet the sudden crisis occurring in a family on account of the death of the breadwinner while in service.(ii)

appointment on compassionate ground to meet the crisis in a family on account of medical invalidation of the breadwinner. Another contingency, though less recognised, is where landholders lose their entire land for a public project, the scheme provides for compassionate appointment to members of the families of project-affected persons. (Particularly where the law under which the acquisition is made does not provide for market value and solatium, as compensation.)(c) Compassionate appointment can neither be claimed, nor be granted, unless the rules governing the service permit such appointments. Such appointments shall be strictly in accordance with the scheme governing such appointments and against existing vacancies.(d) Compassionate appointments are permissible only in the case of a dependent member of the family of the employee concerned, that is, spouse, son or daughter and not other relatives. Such appointments should be only to posts in the lower category, that is, Classes III and IV posts and the crises cannot be permitted to be converted into a boon by seeking employment in Class I or II posts."*Ed.:Para 18 corrected vide Official Corrigendum No. F.3/Ed.B.J./92/2008 dated 10-11-2008.] , this Court observed that appointments made only on the basis of descent is impermissible. However, compassionate appointments are a well-recognised exception to the general rule if they are carved out in the interest of justice to meet public policy considerations [Director General of Posts v. K. Chandrashekar Rao, (2013) 3 SCC 310, para 18 : (2013) 1 SCC (L&S) 596. Further, constitutionality of compassionate appointments was upheld in State of Haryana v. Ankur Gupta, (2003) 7 SCC 704, para 6 : 2003 SCC (L&S) 1165; Yogender Pal Singh v. Union of India, (1987) 1 SCC 631, para 17.] . It lends justification only that far and no further.

9. While compassionate appointment is an exception to the constitutional guarantee under Article 16, a policy for compassionate appointment must be consistent with the mandate of Articles 14 and 16. That is to say, a policy for compassionate appointment, which has the force of law, must not discriminate on any of the grounds mentioned in Article 16(2), including that of descent. In this regard, "descent" must be understood to encompass the familial origins of a person [See, Gazula Dasaratha Rama Rao v. State of A.P., 1960 SCC OnLine SC 39 : (1961) 2 SCR 931 : AIR 1961 SC 564] . Familial origins include the validity of the marriage of the parents of a claimant of compassionate appointment and the claimant's legitimacy as their child. The policy cannot discriminate against a person only on the ground of descent by classifying children of the deceased employee as legitimate and illegitimate and recognising only the right of legitimate descendant. Apart from the fact that strict scrutiny would reveal that the classification is suspect, as demonstrated by this Court in V.R. Tripathi [Union of PK,J W.P.Nos.885 & 20996 of 2023 India v. V.R. Tripathi, (2019) 14 SCC 646 : (2020) 1 SCC (Civ) 768 :

(2020) 2 SCC (L&S) 301] , it will instantly fall foul of the constitutional prohibition of discrimination on the ground of descent. Such a policy is violative of Article 16(2).

10. We note with approval the decision of the Delhi High Court in Union of India v. Pankaj Kumar Sharma [Union of India v. Pankaj Kumar Sharma, 2014 SCC OnLine Del 7729] , to which one of us (S. Ravindra Bhat, J.) was a party, which held that descent cannot be a ground for denying employment under the scheme of compassionate appointments. Speaking through Sanghi, J., the Court held : (SCC OnLine Del para 22) "22. The Court is of opinion that -- apart from being textually sound -- understanding "descent" in terms of prohibiting discrimination against a person on the

basis of legitimacy, or on the basis of his mother's status as a first or second wife, fits within the principles underlying Article 16(2). Not only is one's descent, in this sense, entirely beyond one's control (and therefore, ought not to become a ground of State- sanctioned disadvantage), but it is also an established fact that children of "second" wives, whether counted as illegitimate or legitimate, have often suffered severe social disadvantage. Another significant observation here is that at the entry level -- "legitimacy" is and cannot be a ground for denial of public employment. For these reasons, this Court is of the opinion that the petitioner's regulation violates Article 16(2)."

15. In view of the above proposition of law, it is clear that discrimination against a person only on the ground of lineage/descent is illegal and classification of children of a deceased employee as legitimate or illegitimate, is also prohibited. Furthermore, the Hon'ble Apex Court has mandated that legitimacy cannot be used as a ground for denial of public employment at the entry level. Therefore, this Court is of the view that case of petitioner No.1 cannot be refused/denied consideration under the compassionate appointment scheme only because of his being the son of second wife of late Shyam Rao. Hence, the impugned order is liable to be set aside.

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16. Accordingly, W.P.No.885 of 2023 is allowed and the impugned order vide Memo No.DEE/OP/NZB/JAO/ADM/E2/D No.3635/20, dated 25.03.2021 passed by the respondent No.4 is hereby set aside. The respondents are directed to consider the case of petitioner No.1 for appointment on compassionate grounds and pass necessary orders strictly in accordance with law.

17. Coming to W.P.No.20996 of 2023, which is filed seeking the consequential death benefits of late Shyam Rao, wherein, challenge is made to the impugned order vide proceedings in Lr.No.DEE/Op/Nzb/JAO/ Adm/E2/D.No.979/2023 dated 25.07.2023. The claim of the petitioners for payment of death benefits of late Shyam Rao was rejected solely on the ground that there is no documentary evidence of legal dissolution of first marriage of late Shyam Rao. It is pertinent to note that as per the Family Member Certificate dated 21.09.2016, the Tahsildar concerned has declared the petitioners herein as the only legal heirs of the deceased employee - late Shyam Rao, and admittedly, the said fact is undisputed. As such, it is justified to hold that the petitioners herein are the sole legal heirs of the deceased late Shyam Rao.

18. Further, according to the petitioner No.2, she married late Shyam Rao in 1995 after his divorce with the first wife, Smt. Laxmi, on 06.08.1994. The said fact is also not disputed by any party, including the son of the first wife, Mr. S.M. Ravi. Moreover, it is also to be noted PK,J W.P.Nos.885 & 20996 of 2023 that the first wife Smt. Laxmi is no more. As such, there is no basis for denial of payment of death benefits to the petitioners herein. Furthermore, it is relevant to refer to Rule 50(6)(a)(i) of the Telangana Revised Pension Rules, 1980, which reads as "(6)(a)(i) Where the family pension is payable to more widows than one, the family pension shall be paid to the widows in equal shares."

19. In view of the abovemade discussion, this Court does not find any reason as to why the petitioners herein should be deprived of the benefit of grant of death benefits of late Shyam Rao, and

thus, the impugned order dated 25.07.2023 is liable to be set aside.

20. Accordingly, W.P.No.20996 of 2023 is allowed and the impugned order vide proceedings in Lr.No.DEE/Op/Nzb/JAO/Adm/E2/ D.No.979/2023, dated 25.07.2023 issued by respondent No.4 is hereby set aside. The respondents are directed to release all the consequential benefits arising out of the death of late Shyam Rao, to the petitioners herein.

Miscellaneous petitions, if any, pending in there writ petitions, shall stand closed.

_____ PULLA KARTHIK, J Date: 01.05.2024 GSP/nvl